

Court No. - 32

Case :- WRIT - C No. - 1639 of 2020

Petitioner :- Ravindra Kumar

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Sudhir Kumar (Chandraul)

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"I. Issue a writ of certiorari to quash the impugned recovery certificate dated 27.8.2019 issued by respondent no. 4 and recovery citation dated 6.12.2019 issued by respondent no.7 (Annexure no. 4 and 6 of the writ petition)."

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of six weeks from today, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally **disposed of.**

Order Date :- 18.1.2020

Rahul Dwivedi/-